

		show cause. The proofs of service, however, fail to show Creditors served the notice of the hearing in the form prescribed by the Judicial Council. As for service on Debtors, Creditors filed a document entitled "Proof of Service by Mailing of Order to Show Cause." The documents attached, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service, and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which any party is served. One of the Debtors is a trust, and therefore must be served by service on the trustee in that capacity. The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the "Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750)." There, however, is no proof of service showing this supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770. Creditors' counsel is ordered to give notice of this ruling
6.	<i>In re: 5353 Barrett Circle, Buena Park, California 90621</i> 2026-01557436	Before the court is the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale that petitioner Western Progressive, LLC (Petitioner) filed on March 20, 2026. The petition is filed under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on December 18, 2024, regarding the property located at 5353 Barrett Circle, Buena Park, California 90621 (Property). After paying off the trust deed and all senior liens, and after deducting its fees and expenses, Petitioner seeks to deposit the surplus funds of \$396,426.41 with the court and be discharged from responsibility for the

	distribution of those funds because, after due diligence, Petitioner is unable to determine to whom these surplus funds should be distributed. Specifically, after giving notice to all parties of record who potentially could have a claim to some or all of the surplus funds, including Donna Chang, the owner of the Property immediately before the sale, Petitioner did not receive any valid claim to the surplus funds. The court finds the petition complies with the notice and other requirements of section 2924j, and Petitioner should be allowed to deposit the surplus funds with the court and be discharged. Accordingly, the petition is GRANTED, and Petitioner is ordered to deposit all surplus fund relating to the trustee's sale for the Property with the clerk of the court forthwith. Upon deposit of the funds with the clerk of the court, Petitioner shall be discharged of further responsibility for the distribution of the sale proceeds as provided in Civil Code section 2924j(c). Upon deposit with the clerk of the court, the surplus funds shall stay on deposit with the clerk until such time as a claim to the funds is duly asserted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"] Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that has remained unclaimed by the owner for more than three years escheats to this state"].) The court hereby sets a hearing to consider any and all claims to these surplus funds for THURSDAY, SEPTEMBER 10, 2026, AT 2:00 P.M., IN DEPARTMENT C23. Any claims to the surplus funds must be filed with the court and served on all parties at least 15 days before the foregoing hearing date. <u>The clerk of the</u>
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		<u>court is directed to give notice of this hearing by first class mail to all claimants identified in attachment 8 to the petition.</u> Petitioner's counsel is ordered to give notice of this ruling.
7.	Arnel Management Company vs. Jouini 2021-01223045	Before the court is the hearing on the order to show cause as to why this case should not be dismissed as to defendant Abdelhedi Jouini (Jouini) for failing to serve Jouini within three years of filing the complaint. Plaintiff Arnel Management Company (Plaintiff) commenced this action against Jouini and the other defendants on September 24, 2021. On November 2, 2021, Plaintiff took Jouini's default, and on August 3, 2023, the court entered a default judgment against Jouini. On May 14, 2026, the court granted Jouini's motion to set aside and vacate the default and default judgment entered against him on the ground they were void because Plaintiff never validly served Jouini. In granting that motion, the court set the current order to show cause and ordered Plaintiff to file and serve any response or objection to the order to show cause by June 29, 2026. Plaintiff has not filed any response to the court's order to show cause. Pursuant to Code of Civil Procedure section 583.210, the summons and complaint in an action must be served on the defendant within three years after the action is commenced as to that defendant. Only valid service complies with the requirements of section 583.210. (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1433.) Here, as the court found on Jouini's motion, Plaintiff's service on Jouini was not valid and did not confer jurisdiction over him. Nearly five years have elapsed since Plaintiff commenced this action against Jouini and no valid service has been achieved. Pursuant to Code of Civil Procedure section 583.250, the court is required to dismiss an action against any defendant who is not served within three years. There are various statutory provisions that will toll the three-year period in certain circumstances or otherwise excuse the failure to serve within that period. The burden is on the plaintiff to identify and establish the applicability of any tolling provision or excuse. (<i>Putnam v. Clague</i> (1992) 3 Cal.App.4th 542, 549.) Plaintiff did not file any response to the court's order to show cause and therefore has not established any tolling or excuse for failing to time serve Jouini.